RESOLUTION NO. 2026-24

A RESOLUTION OF THE TOWN COUNCIL OF THE TOWN OF FAIRFAX, CALIFORNIA CALLING FOR A GENERAL MUNICIPAL ELECTION TO BE HELD IN ITS JURISDICTION ON NOVEMBER 3, 2026 FOR THE PURPOSE OF SUBMITTING TO THE VOTERS A BALLOT MEASURE AUTHORIZING THE INCREASE IN THE RATE AND EXTENSION OF THE TERM OF A SPECIAL PARCEL TAX FOR PARAMEDIC AND PRE-HOSPITAL EMERGENCY MEDICAL SERVICES FOR FOUR ADDITIONAL YEARS; REQUESTING THE MARIN COUNTY BOARD OF SUPERVISORS TO CONSOLIDATE SAID ELECTION WITH THE STATEWIDE GENERAL ELECTION TO BE HELD ON THAT DATE; AND SETTING RULES AND DEADLINES FOR BALLOT ARGUMENTS AND REBUTTALS REGARDING SAID MEASURE

WHEREAS, the Ross Valley Paramedic Authority ("RVPA") is an eight member California Joint Powers Authority formed by agreement in 1982 pursuant to the California Joint Exercise of Powers Act, Gov. Code, §§ 6500 *et seq.*, by and among the Cities/Towns of Corte Madera, Larkspur, Fairfax, Ross, and San Anselmo; the Kentfield Fire Protection District; the Sleepy Hollow Fire Protection District; and the County of Marin ("Member Agencies") for the purpose of providing paramedic and pre-hospital emergency medical services throughout and across the Member Agencies' jurisdictional boundaries by a single, consolidated agency; and

WHEREAS, the Town of Fairfax has been a Member Agency of RVPA since its inception over 40 years ago; and

WHEREAS, the community has consistently received responsive, high-quality paramedic and pre-hospital emergency medical care from RVPA and the Council wishes to maintain and ensure this service into the future; and

WHEREAS, RVPA is funded largely with tax revenues from its Member Agencies; and

WHEREAS, pursuant to Fairfax Municipal Code Chapter 3.44, approved by 2/3 of Town voters at the General Municipal Election held on November 8, 2022, the Town currently collects a special parcel tax on taxable real property within the Town for a period of four (4) years to fund paramedic and pre-hospital emergency medical services provided by RVPA to the Town; and

WHEREAS, pursuant to Fairfax Municipal Code Section 3.44.100, the current parcel tax measure is scheduled to sunset on June 30, 2027; and

WHEREAS, through the adoption of this Resolution, the Town Council of Fairfax desires to propose to its voters a ballot measure at the November 3, 2026 General Municipal Election which would increase the rate of and extend the term of the existing parcel tax for an additional four (4) years, until June 30, 2031, in the amounts specified in the attached Ordinance/Measure (the "Parcel Tax"); and

WHEREAS, the monies from the Parcel tax would continue to be used exclusively for paramedic and pre-hospital emergency care services; and

WHEREAS, pursuant to California Constitution, Articles XIIIA §4, XIIIC §2(d), XIIID, §3(a)(2), and California Government Code sections 50077, 53722, and 53724, the Town may not impose any new, or extend or increase any existing special parcel tax unless and until that tax is submitted to the electorate and approved by an affirmative vote of two-thirds (2/3) of the qualified electors voting in the election; and

WHEREAS, pursuant to California Government Code sections 50075 and 50077, and Elections Code section 9222, the Town Council has the authority to place paramedic/emergency response services special parcel tax measures on the ballot to be considered at a municipal election; and

WHEREAS, pursuant to Proposition 62 (California Government Code section 53724(c) and (d)), a local special tax election may be consolidated with a statewide primary election, a statewide general election, or a regularly scheduled local election at which all of the electors of the local government are entitled to vote, or may be held on any other election date permitted by law; and

WHEREAS, the Town will be holding a regularly-scheduled General Municipal Election, occurring on the same date as the Statewide General Election, on November 3, 2026; and

WHEREAS, the ballot measure and the terms of approval, and the collection and use of the revenues of the Parcel Tax are described and provided for in the Ordinance to be considered by the qualified voters, attached hereto as Exhibit "A" (the "Measure" or "Ordinance") and by this reference made an operative part hereof, and in accordance with all applicable laws; and

WHEREAS, on July 1, 2026, pursuant to California Government Code section 50077, the Town Council held a public hearing after giving due notice regarding calling for an election on the Measure; and

WHEREAS, it is desirable that the General Municipal Election for this Measure be consolidated with the Statewide General Election to be held on the same date and that within the Town the precincts, polling places, vote centers and election officers of the two elections be the same, and that the Marin County Registrar of Voters/Election Department canvass the returns of the General Municipal Election and that the election be held in all respects as if there were only one election; and

WHEREAS, pursuant to California Elections Code sections 10403 *et seq.*, the Town Council may request the Marin County Board of Supervisors to consolidate the General Municipal Election with any and all other elections to be held in the County on November 3, 2026; and

WHEREAS, the Town Council desires to set rules and deadlines for the writing and submission of ballot arguments and rebuttals for or against the Measure for inclusion in the voter information guide regarding the Measure.

NOW, THEREFORE, BE IT RESOLVED as follows:

SECTION 1. RECITALS. The above recitals are true and correct and incorporated as findings herein.

SECTION 2. ELECTION CALLED. Pursuant to its right and authority as contained in the California Government and Elections Codes and any other laws applicable to general law cities, there is hereby called and ordered to be held in the Town of Fairfax, Marin County, California on Tuesday, November 3, 2026, a General Municipal Election to submit to the voters the Measure/Ordinance, increasing the rate of and extending the term of the special parcel tax for the provision of paramedic and pre-hospital emergency medical services. The Ordinance is attached hereto as Exhibit "A" and incorporated herein by reference.

SECTION 3. BALLOT QUESTION. The Town Council, pursuant to its right and authority, does hereby order that the ballot question for the Measure shall be presented to the qualified voters on the ballot in the following form:

"To maintain 9-1-1 emergency response times and the number of Ross Valley Paramedic Authority on-duty paramedics ready to respond to accidents/medical emergencies, shall the measure be adopted extending the Fairfax paramedic services special tax for four years at a rate of up to $107.50/residential living unit or 1,000 square feet of developed nonresidential property, adjusted by up to $4.00/year, generating approximately $432,000 annually, with annual audits; public spending disclosure; all funds for local paramedic services?"	Yes
	No

SECTION 4. APPROVAL OF ORDINANCE. The Town Council of the Town of Fairfax hereby approves the Ordinance, the form thereof, and its submission to the voters at the November 3, 2026 General Municipal Election, as attached hereto as Exhibit "A" incorporated herein by reference. The measure shall not take effect unless and until approved by a vote of at least two-thirds of the voters voting on the question at the election.

SECTION 5. ELECTION PROCEDURES. The Town Clerk is authorized, instructed, and directed to procure and furnish, or cause to be procured and furnished, any and all official ballots, printed matter and all supplies, equipment and paraphernalia that may be necessary in order to properly and lawfully conduct the election. In all particulars not recited in this Resolution, the election shall be held and conducted as provided by law for holding municipal elections.

SECTION 6. IMPARTIAL ANALYSIS. Pursuant to Elections Code section 9280, the Town Council hereby directs the Town Clerk to transmit a copy of the Measure to the Town Attorney. The Town Attorney shall prepare an impartial analysis of the Measure, not to exceed 500 words in length, showing the effect of the Measure on the existing law and the operation of the Measure, and transmit such impartial analysis to the Town Clerk not later than the deadline for submittal of direct arguments for or against the Measure.

The impartial analysis shall include a statement indicating whether the Measure was placed on the ballot by a petition signed by the requisite number of voters or by the Town Council. In the event the entire text of the Measure is not printed on the ballot, nor in the voter information guide, there shall be printed immediately below the impartial analysis, in no less than 10-font bold type, the following: "**The above statement is an impartial analysis of Ordinance or Measure ____. If you desire a copy of the ordinance or measure, please call the Office of the Town Clerk at (415) 458-2343 and a copy will be mailed at no cost to you.**"

SECTION 7. DIRECT BALLOT ARGUMENTS. The Town Council authorizes (i) the Town Council or any member(s) of the Town Council, (ii) any individual voter eligible to vote on the above Measure, (iii) a bona fide association of such citizens or (iv) any combination of voters and associations, to file a written argument in favor of or against the Measure, accompanied by the printed name(s) and signature(s) of the author(s) submitting it, in accordance with Article 4, Chapter 3, Division 9 of the Elections Code of the State of California, and to change the argument until and including the date fixed below by the Town Clerk, after which no arguments for or against the Town Measure may be submitted to the Town Clerk.

The deadline to submit direct arguments for or against the Town Measure pursuant to this Resolution is **Monday, August 17, 2026**. Each argument shall not exceed 300 words and shall be filed with the Town

Clerk, signed, and include the printed name(s) and signature(s) of the author(s) submitting it, or if submitted on behalf of an organization, the name of the organization, and the printed name and signature of at least one of its principal officers who is the author of the argument.

SECTION 8. REBUTTAL ARGUMENTS. Pursuant to Section 9285 of the Elections Code of the State of California, when the Town Clerk has selected the direct arguments for and against the Town Measure which will be printed and distributed to the voters, the Clerk shall send copies of the direct argument in favor of the Measure to the authors of the direct argument against, and copies of the direct argument against to the authors of the direct argument in favor. The authors or persons designated by them may prepare and submit rebuttal arguments not exceeding 250 words. The rebuttal arguments shall be filed with the Town Clerk not later than **Monday, August 24, 2026**. Rebuttal arguments shall be printed in the same manner as the direct arguments. Each rebuttal argument shall immediately follow the direct argument which it seeks to rebut.

SECTION 9. BALLOT FORMAT AND PRINTING. The ballots to be used at the election shall be in the form and content as required by law. The full text of the Measure shall not be printed in the voter information guide, and a statement shall be printed on the ballot pursuant to Elections Code section 9223 advising voters that they may obtain a copy of this Resolution and the Measure, at no cost, upon request made to the Town Clerk.

SECTION 10. PUBLIC EXAMINATION. Pursuant to Elections Code section 9295, this Measure will be available for public examination for no fewer than ten (10) calendar days prior to being submitted for printing in the voter information guide. The Town Clerk shall post notice in the Clerk's office of the specific dates that the examination period will run.

SECTION 11. HOURS OF POLLING/VOTE CENTERS. The vote center locations and hours of operations, ballot drop box locations and hours of operations, vote-by-mail procedures and timing, the election officers, and all other persons and procedures for the General Municipal Election shall be the same as those utilized by the County of Marin and in compliance with the Elections Code of the State of California.

SECTION 12. REQUESTING CONSOLIDATION OF ELECTIONS.

A. Pursuant to Elections Code section 10403, the Board of Supervisors of the County of Marin is hereby requested to consent and agree to the consolidation of the General Municipal Election on Tuesday, November 3, 2026 with the Statewide General Election to be held on the same date, provide all services necessary for this election, and print ballots including the ballot Measure set forth herein.

B. Canvass of Returns. The County Election Department is authorized to canvass the returns and perform all other proceedings incidental to and connected with the General Municipal Election. The Election shall be held in all respects as if there were only one election, and only one form of ballot shall be used. Pursuant to California Elections Code Sections 10403 and 10418, the election will be held and conducted in accordance with the provisions of law regulating the Statewide General Election.

C. Necessary Steps. The Board of Supervisors is requested to issue instructions to the County Registrar of Voters/Election Department to take any and all steps necessary for the holding of the consolidated election.

D. Costs. The Town of Fairfax recognizes that additional costs will be incurred by the County by reason of this consolidation and agrees to reimburse the County for any costs.

SECTION 13. NOTICE TO COUNTY OF MARIN. The Town Clerk shall, not later than the 88th day prior to the General Municipal Election, file a certified copy of this Resolution with the Marin County Board of Supervisors and the Registrar of Voters of the County of Marin, pursuant to Elections Code section 10403.

SECTION 14. NOTICE OF ELECTION. Notice of the election is hereby given and the Town Clerk is hereby authorized and directed to give notice of the election as required by law.

SECTION 15. EXECUTION. The Town Manager is hereby authorized and directed to do any and all things necessary to execute and deliver any and all documents necessary or advisable in order to complete the process for placing the measure on the November 3, 2026 ballot.

SECTION 16. SEVERABILITY. If any section, subsection, sentence, clause, phrase, or portion of this Resolution is for any reason held to be invalid or unconstitutional by the decision of any court, such decision shall not affect the validity of the remaining portions of this Resolution. The Town Council hereby declares that it would have adopted this Resolution and each section, subsection, sentence, clause, and phrase irrespective of the fact that any one or more of same be declared invalid and unconstitutional.

SECTION 17. CEQA. The Town Council hereby finds and determines that the ballot measure relates to organizational or administrative activities of governments that will not result in direct or indirect physical changes in the environment, and therefore is not a project within the meaning of the California Environmental Quality Act ("CEQA") and the State CEQA Guidelines, section 15378(b)(5).

SECTION 18. CERTIFICATION. The Town Clerk shall certify to the passage and adoption of this Resolution and enter it into the book of original resolutions.

SECTION 19. EFFECTIVE DATE. This Resolution shall become effective upon its adoption.

PASSED, APPROVED and **ADOPTED** this 1st day of July 2026.

STEPHANIE HELLMAN
MAYOR

ATTEST

CHRISTINE FOSTER
DEPUTY TOWN CLERK

I HEREBY CERTIFY that the foregoing Resolution No. 2026-24 was duly adopted by the Town Council of the Town of Fairfax at a regular meeting thereof, held on the 1st day of July 2026, by the following vote of Council:

AYES:	**Blash, Ghiringhelli, Coler, Egger, Hellman**
NOES:	**None**
ABSENT:	**None**
ABSTAIN:	**None**

CHRISTINE FOSTER
DEPUTY TOWN CLERK

EXHIBIT "A"
ORDINANCE

[ATTACHED BEHIND THIS PAGE]

ORDINANCE NO.

MEASURE "____"

AN ORDINANCE OF THE PEOPLE OF THE TOWN OF FAIRFAX, CALIFORNIA INCREASING THE RATE OF AND EXTENDING THE TERM OF A SPECIAL PARCEL TAX FOR FOUR (4) YEARS UPON PROPERTY WITHIN THE DISTRICT TO FUND PARAMEDIC AND PRE-HOSPITAL EMERGENCY MEDICAL SERVICES

BE IT ORDAINED BY THE PEOPLE OF THE TOWN OF FAIRFAX, CALIFORNIA AS FOLLOWS:

SECTION 1. Chapter 3.44 of Title 3 (Revenue and Finance) of the Fairfax Municipal Code is hereby amended to read as follows:

"CHAPTER 3.44: PARAMEDIC AND/OR EMERGENCY MEDICAL SERVICES TAX

Section

3.44.010 Findings; statement of purpose
3.44.020 Definitions
3.44.030 Tax imposed
3.44.040 Use of tax proceeds; appropriations limit
3.44.050 Method of collection; accountability report
3.44.060 Delinquency; refunds
3.44.070 Amendment of chapter
3.44.080 Severability
3.44.090 Two-thirds voter approval; effective date
3.44.100 Sunset provision
3.44.110 Execution

§ 3.44.010 FINDINGS; STATEMENT OF PURPOSE.

It is the sole purpose and intent of this chapter, pursuant to Articles XIIIA and XIIIC of the California Constitution, to impose a special parcel tax on residential and nonresidential property within the Town of Fairfax, the proceeds of which shall be used exclusively to fund paramedic and/or pre-hospital emergency medical services. This parcel tax is neither an ad valorem tax on real property nor a transaction or sales tax on the sale of property. It is a special tax and requires two-thirds voter approval.

§ 3.44.020 DEFINITIONS.

For the purpose of this chapter, the following definitions shall apply unless the context clearly indicates or requires a different meaning.

FLOOR AREA. The total area of all floors in all buildings, including accessory structures, on a lot, as measured to the outside surface of exterior walls or to the centerline of common walls. FLOOR AREA excludes any crawl space, basement area, attic without floor, and any open porch, deck, balcony or terrace.

NONRESIDENTIAL USE. Any building which is zoned, designed, intended, or used for any purpose other than a residential use, including, but not limited to, commercial, industrial, and office uses. A hotel, motel, and all residential units contained therein, as defined below, shall be treated as a nonresidential use.

RESIDENTIAL UNIT. Any building, or portion thereof, containing one or more rooms, a separate bathroom, and a single kitchen, designed for or occupied by one family or by one or more individuals. This shall include all residential units in those areas designated as residential zones by § 17.012.010 of this Code.

§ 3.44.030 TAX IMPOSED.

A special tax for the purpose outlined in § 3.44.040 shall be imposed on nonresidential uses and on residential units in the amount specified below for each fiscal year from 2027 to 2031:

(A) Nonresidential uses. For each 1,000 square feet of floor area of nonresidential uses, the tax amount shall be up to:
(1) $107.50 for fiscal year 2027-2028;
(2) $111.50 for fiscal year 2028-2029;
(3) $115.50 for fiscal year 2029-2030; and
(4) $119.50 for fiscal year 2030-2031.

(B) Residential units. For each residential unit, the tax amount shall be up to:
(1) $107.50 for fiscal year 2027-2028;
(2) $111.50 for fiscal year 2028-2029;
(3) $115.50 for fiscal year 2029-2030; and
(4) $119.50 for fiscal year 2030-2031.

(C) The tax rates imposed by this Section are maximum rates and may not be increased by the Town Council above such maximum rates. The tax imposed by this ordinance may be reduced or eliminated by the Town Council on or before July 1st in any year in which the Town Council determines that after such reduction or elimination there will be sufficient revenues available to provide paramedic and/or pre-hospital emergency medical services and the Council may reverse such action or otherwise adjust the tax rate as determined necessary to sufficiently fund the provision of such services. Such reduction or elimination shall be effective for the fiscal year following such vote.

§ 3.44.040 USE OF TAX PROCEEDS; APPROPRIATIONS LIMIT.

(A) The proceeds of the special tax imposed by this chapter shall be used specifically and solely for the purpose of providing paramedic and/or pre-hospital emergency medical services. This limitation on the use of the proceeds shall be legally binding and enforceable.

(B) The appropriations limit of the town shall be increased by the proceeds received from this special tax for each of the four years of this special tax to permit the expenditure of the proceeds of the tax imposed by this chapter for the specific and limited purposes set forth in this section.

§ 3.44.050 METHOD OF COLLECTION; ACCOUNTABILITY REPORT.

(A) The special tax imposed by this chapter shall be due from every person who owns real property within the town on which is located a residential unit(s) and/or a nonresidential use(s) and as reflected upon the tax rolls of the Marin County Assessor at the same time ad valorem tax is due. This special tax shall be collected by the Marin County Tax Collector at the same time, in the same manner, and subject to the same terms and conditions, including penalties and interest, as the ad valorem tax. The full amount due under this chapter shall constitute a debt to the town. An action for the collection of any tax due

hereunder may be commenced in the name of the town, or its assignee, in any court having jurisdiction of the cause.

(B) The Town Treasurer shall prepare and file with the Town Council a report by August 1 of each year stating: (1) the amounts collected and spent by the town in the previous fiscal year; (2) the status of services authorized to be funded by the proceeds of this tax; and (3) the funds carried over from previous years and to be carried over to future years. Such report shall be available for inspection without charge to any property owner in the town.

§ 3.44.060 DELINQUENCY; REFUNDS.

(A) To any amount of the tax created by this chapter which becomes delinquent, the Marin County Tax Collector shall add a penalty in an amount equal to any penalty owing for delinquencies in the ad valorem property tax. The tax and penalty shall bear interest at the same rate as the rate for unpaid ad valorem tax until paid.

(B) Whenever the amount of any tax, penalty, or interest imposed by this chapter has been paid more than once, or has been erroneously or illegally collected or received by the town, it may be refunded provided a verified claim in writing therefor, stating the specific ground upon which such claim is founded, is filed with the Treasurer within one year of the date of payment. The claim shall be filed by the person who paid the tax or such person's guardian, conservator, or the executor of her or his estate and shall contain the information required by Cal. Gov't Code § 910 for claims to which that section applies. No claim may be filed on behalf of other taxpayers or a class of taxpayers. If a claim is approved by the Town Council, the excess may be refunded or may be credited against any amounts then due and payable from the person from whom it was collected, and the balance may be refunded to such person, his/her administrators or executors. Filing a timely and sufficient claim shall be a condition precedent to legal action against the town for a refund of the tax.

§ 3.44.070 AMENDMENT OF CHAPTER.

The Town Council is hereby authorized to amend this chapter by three affirmative votes of its members for the sole and limited purposes of carrying out the general purposes of this chapter, to conform the provisions of this chapter to applicable state law, to permit the County Tax Collector to collect the special tax levied by this chapter, or to re-assign the duties of public officials under this chapter. In no event, however, may the Town Council increase the tax amount specified in § 3.44.030 or modify the specific and limited purposes for which the tax may be utilized as provided for in § 3.44.040 without the approval of two-thirds of the voters of the town voting on the question.

§ 3.44.080 SEVERABILITY.

If any section, or part thereof, of this chapter is held invalid or unenforceable by any court and such judgment becomes final, then that section, or part thereof, may be amended by this Council, by a majority vote, to conform with the judgment of such court, provided such amendment is consistent with the purpose and intent of this chapter. If any section, subsection, sentence, phrase or clause of this chapter is for any reason held to be invalid, such decision shall not affect the validity of the remaining portion of this chapter. The people of the Town of Fairfax hereby declare that they would have adopted this chapter and each section, subsection, sentence, phrase or clause thereof irrespective of the fact that any one or more sections, subsections, sentences, phrases, or clauses may be declared invalid.

§ 3.44.090 TWO-THIRDS VOTER APPROVAL; EFFECTIVE DATE.

An election to confirm and approve this chapter has been set for November 3, 2026. This chapter shall be effective only if approved by two-thirds of the voters voting upon this chapter and shall go into effect ten days after the vote is declared by the Town Council.

§ 3.44.100 SUNSET PROVISION.

This chapter and the special parcel tax established herein shall expire and be of no further force or effect after midnight, June 30, 2031.

§ 3.44.110 EXECUTION.

The Town Mayor is hereby authorized to attest to the adoption of this chapter by signing where indicated below."

I hereby certify that this Special Parcel Tax Ordinance was PASSED, APPROVED, AND ADOPTED by the People of the Town of Fairfax on the 3rd day of November 2026.

_____
STEPHANIE HELLMAN
MAYOR

ATTEST

_____
CHRISTINE FOSTER
DEPUTY TOWN CLERK